

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA

In the matter of an appeal under and in terms of the Article 154P(6) of the Constitution of the Democratic Socialist Republic of Sri Lanka as enacted by the 13th Amendment thereto, read together with Article 138 of the Constitution thereof.

CA Appeal No:
CA(PHC)101/2019

Hambantota Provincial High
Court Case No: HCRA 23/2016

Hambantota Magistrate Court
Case No: 25466

Urban Development Authority,

"Sethsiripaya",

Sri Jayawardanapura Kotte,

Battaramulla.

Petitioner

Vs

Samarasena Arachchige Sumeda Sampath,

No.53 A, Main Street,

Ambalanthota.

Respondent

AND

Samarasena Arachchige Sumeda Sampath,

No.53 A, Main Street,

Ambalanthota.

Respondent-Petitioner

Vs

Urban Development Authority,

"Sethsiripaya",

Sri Jayawardanapura Kotte,

Battaramulla.

Petitioner-Respondent

AND

Samarasena Arachchige Sumeda,

No.53 A, Main Street,

Ambalanthota.

Respondent-Petitioner-Appellant

Vs

Urban Development Authority,

"Sethsiripaya",

Sri Jayawardanapura Kotte,

Battaramulla.

Petitioner-Respondent-Respondent

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Harshana Ananda for the Respondent
Petitioner-Appellant.
Pulina Jayasooriya S.C. for the Petitioner-
Respondent-Respondent.

Argued on : 10.02.2026

Written Submissions
of the Respondent
Petitioner-Appellant
tendered on : 20.05.2024

Written Submissions
of the Petitioner-Respondent
-Respondent tendered on : Not tendered

Decided on : 26.06.2026

K. M. S. DISSANAYAKE, J.

The instant appeal arises from an order of the learned High Court Judge of the Southern Province holden at Hambantota dated 31.05.2019 (hereinafter called and referred to as ‘the HC Order’) made in case bearing No. HCRA 23/2016, in the exercise of the revisionary jurisdiction vested in it by Article 154P(3)(b) of the Constitution of the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as ‘the Constitution’) wherein, the learned High Court Judge of the Southern Province holden at Hambantota (hereinafter called and referred to as ‘the High Court Judge of the Province’) had dismissed the application in revision preferred thereto by the Respondent-Petitioner thereto, who is now, the Respondent-Petitioner-Appellant to the instant appeal (hereinafter called and referred to as ‘the Appellant’) against the order of the learned Magistrate of Hambantota dated 08.11.2016 (hereinafter called and referred to as ‘the MC Order’), made in case bearing No. 25466, instituted thereat, by the Petitioner thereto, who is now, the Petitioner-Respondent-Respondent to the instant appeal (hereinafter called and referred to as ‘the Respondent’) by way of an application under and in terms of section 28A(3) of the Urban Development Authority Act No. 41 of 1978 as amended (hereinafter called and referred to as ‘the application’), wherein the learned Magistrate of Hambantota had acting under the powers vested in him by section 28A(3) of the Urban Development Authority Act No. 41 of 1978 as amended (hereinafter called and referred to as ‘the Act’), made order authorizing the Respondent to demolish the unauthorized construction erected by the Appellant on the land and premises as morefully, described in the petition preferred thereto by the Respondent, namely; No.53A, Main Street, Ambalanthota, situated within the limits of Ambalanthota Pradeshiya Sabha (hereinafter called and referred to as “the subject matter of the action”).

Being aggrieved by the order, the Appellant has now, preferred to this Court the instant appeal on the grounds of appeal as morefully, set out in paragraph 7 (i) to (vii) of the petition of appeal among any other grounds of appeal that may be urged by Counsel at the hearing of this appeal.

The facts material and relevant to the instant appeal as can be deducible from the petition of appeal, may be briefly, set out as follows;

The application dated 28.09.2015, had been made by the Respondent to the Magistrate Court of Hambantota under and in terms of section 28A(3) of the Act praying for a demolition order of the subject matter erected by the Appellant; that the Appellant who appeared before the Magistrate Court of Hambantota in response to the notices served on him, had shown cause in writing on 12.07.2016 setting out the reasons as to why the application should not be granted; that the learned Magistrate of Hambantota had having considered both the application of the Respondent as well as the showing cause of the Appellant, proceeded to grant the application of the Respondent directing the subject matter to be demolished thereby totally, rejecting the showing cause of the Appellant thereto; that being aggrieved by the MC order, the Appellant had preferred an application in revision therefrom to the High Court of the Province which was dismissed by it, hence, the instant appeal.

It is in this context, let me now, deal with the appeal.

The application made to the Magistrate Court of Hambantota by the Respondent-the Urban Development Authority, is based on the premise that the area in which the unauthorized construction-the subject matter, namely; No. 53A, Main Street, Ambalanthota, is situated in a urban development area as declared by the Honourable Minister of Urban Development, Housing and Construction in the Notification published in the Government Gazette-Extra-Ordinary bearing No. 1090/5, and dated 22.07.1999; and that the Appellant had erected an unauthorized construction thereat as shown in the sketch annexed to the application marked as ‘ඔඵ1’ in contravention of section 8J(1) of the Act.

On the other hand, the defence raised by the Appellant in the Magistrate Court of Hambantota to the application is that a date or a month as to when the unauthorized construction was erected on the subject matter had not been specified in the application; and that the father of the Appellant who had been in occupation on the subject matter over 60 years, had been granted an annual permit about 1979 as manifest from the document annexed to his showing cause marked as 'ඉ1'; and that the Father of the Appellant who had since, been in occupation, erected all the constructions in question standing on the land and premises bearing assessment No. 53, Main Street Ambalantota, as shown in photographs annexed to his showing cause marked as 'ඉ2' and 'ඉ3', and hence, the application cannot be maintainable and as such it should be rejected.

It may now, be examined.

Upon a careful scrutiny of the Gazette Notification which was referred to in the averments in the paragraph 3 of the petition of the Respondent furnished to the Magistrate Court of Hambantota, a copy of which was annexed to his petition furnished to the High Court of the Province by the Appellant marked as 'X2' , and a copy of which was also, annexed to the statement of objections of the Respondent furnished to the High Court of the Province marked as 'V2', it becomes manifest, without any doubt and/or without any ambiguity that the area in which the subject matter bearing assessment No. 53A is situated, is coming within the Urban development area as declared by the Hon. Minister in-charge of the subject of Urban Development, to be an urban development area by virtue of powers vested in him by section 23(5) of the Act as amended.

Besides, upon a careful consideration of both the showing cause of the Appellant filed in the Magistrate Court of Hambantota as well as the Petition furnished by him to the High Court of the province along with his application in revision, in its totality, it becomes manifestly, clear that the Appellant too, had clearly, and unequivocally, admitted that it was so.

It is therefore, common ground that the area in which unauthorized construction-the subject matter, is erected, is coming within the ambit of the area so declared by the Hon. Minister in-charge of the subject of Urban Development, to be an urban development area by virtue of powers vested in him by section 23(5) of the Act as amended.

Hence, the Respondent had established without an iota of doubt before the Magistrate Court of Hambantota that unauthorized construction-the subject matter is situated in an area coming within the ambit of an area so declared by the Hon. Minister in-charge of the subject of Urban Development, to be an urban development area by virtue of powers vested in him by section 23(5) of the Act as amended as manifest from 'Y2' as well as from 'X2'- the Appellant's own document as rightly, held by both the learned Magistrate of Hambantota and the learned High Court Judge of the Province.

The principal defence so raised to the application by the Appellant as enumerated above, being such that a date or a month as to when the unauthorized construction was erected on the subject matter, had not been specified in the application; and that the father of the Appellant who had been in occupation on the subject matter over 60 years, had been granted an annual permit about 1979 as manifest from the document annexed to his showing cause marked as 'D1'; and that the Father of the Appellant who had since, been in occupation, erected all the constructions in question standing on the land and premises bearing assessment No. 53, Main Street Ambalantota, as shown in photographs annexed to his showing cause marked as 'D2' and 'D3', and hence, the application cannot be maintainable and as such it should be dismissed *in-limine*.

In view of the nature of the defence as enumerated above, the pertinent question that would then, arise for our consideration is whether a defence as such, would be available to a person noticed under the provisions of the Act to an application preferred to it by an applicant under and in terms of section 28A(3) of the Act.

Sections 8J(1) and 8K(1) of the Act would be relevant and important in this regard and they enact thus;

Section 8J

“(1) Notwithstanding the provisions of any other law, no Government agency or any other person shall carry out or engage in any development activity in any development area or part thereof, except under the authority, and in accordance with the terms and conditions, of a permit issued in that behalf by the Authority.”

Section 8K

“(1) No development activity shall be carried out or engaged in, in contravention of, or in variance with, the permit issued in that behalf.”

A careful analysis of section 8J(1) of the Act in conjunction with section 8K(1) thereof, clearly, and unequivocally, shows that the only, defence that would be available to a person noticed under the provisions of the Act to an application preferred to it by an applicant under and in terms of section 28A(3) of the Act, is that **construction alleged to be unauthorized has been erected by virtue of a valid permit issued to a person noticed by the applicant-UDA under and in terms of the provisions of section 8J and 8K of the Act.** [Emphasis is mine]

Hence, in a situation where an application under section 28A(3) of the Act, has been made, the pertinent question that would arise for consideration by the learned Magistrate is whether the construction alleged to be unauthorized has been erected by virtue of a valid permit issued to a person noticed by the applicant-UDA under and in terms of the provisions of section 8J and 8K of the Act. The existence of a valid permit is the only valid defence to the application under section 28A(3) of the Act, and hence, the burden of proving that the construction had been effected on a valid permit is solely, on the person noticed.

However, a careful scrutiny of the record clearly, shows that not an iota of evidence had been adduced before Court by the Appellant to show that the constructions in question had been effected on a valid permit issued for that purpose by the Respondent-UDA under and in terms of the provisions of section 8J and 8K of the Act, except for the mere assertion that the father of the Appellant had erected all the constructions in question standing on the land and premises bearing assessment No. 53, Main Street Ambalantota, as shown in photographs annexed to his showing cause marked as 'ඉ2' and 'ඉ3'.

Hence, the Appellant had not in any manner, discharged the burden of proof solely, rested in him that the constructions in question, namely; constructions bearing **No. 53A, Main Street, Ambalantota**, had been effected on a valid permit issued for that purpose by the Respondent-UDA under and in terms of the provisions of section 8J and 8K of the Act, except for mere assertion that the father of the Appellant had erected all the constructions in question standing on the land and premises bearing assessment **No. 53, Main Street Ambalantota**, as shown in photographs annexed to his showing cause marked as 'ඉ2' and 'ඉ3', which is not at all, the subject matter of the application presented by the Respondent to the Magistrate Court of Hambantota, as rightly, held by both the learned Magistrate of Hambantota and the learned High Court Judge of the Province.[Emphasis is mine]

In the circumstances, the learned Magistrate of Hambantota was entirely, right in finding that the constructions in question situated at **No. 53A, Main Street, Ambalantota** are unauthorized constructions erected without a valid permit issued therefor, by the Respondent-the UDA under and in terms of the provisions of section 8J and 8K of the Act. [Emphasis is mine]

Hence, I would see no error whatsoever in the HC order too, which had rightly, affirmed, the order of the learned Magistrate of Hambantota.

I would, therefore, see no error whatsoever in any of those two orders made by the learned Magistrate of Hambantota as well as the learned High Court Judge

of the Province warranting either of them or both of them to be set aside in appeal.

Besides, the defence so raised by the Appellant in the Magistrate Court of Hambantota to the application made thereto, by the Respondent as enumerated above, cannot in my view, sustain at least for two reasons, and they may now, be examined.

Firstly, in terms of his own statement of showing cause of the Appellant furnished to the Magistrate Court of Hambantota in defence to the application made to it by the Respondent as enumerated above, the constructions as shown and depicted in photographs ‘ඉ2’ and ‘ඉ3’, are not one and the same constructions as situated at **No. 53A, Main Street Ambalantota**, but some other constructions unrelated to the constructions in question and situated somewhere else at **No. 53, Main Street Ambalantota**. [Emphasis is mine]

Hence, the defence so raised by the Appellant cannot in any manner, sustain both in fact and law and as such it ought to fail on this ground alone.

Secondly, even, if, it is to be assumed for the sake of the argument for a moment, but not conceding that the constructions erected at **No. 53, Main Street Ambalantota** are one and the same constructions as erected at **No. 53A, Main Street Ambalantota**, yet the defence of the Appellant as enumerated above, is not entitled to succeed both in fact and law for; it had not in any manner, been established by the Appellant that the so called constructions had even, been effected on a valid permit issued for that purpose by the Respondent-the UDA under and in terms of the provisions of section 8J and 8K of the Act. [Emphasis is mine]

There is a further reason why the defence of the Appellant is not entitled to succeed and it may now, be examined.

The contents in the application made to the Magistrate Court of Hambantota by the Respondent under and in terms of section 28A(3) of the Act, had been duly,

supported by the Respondent in his affidavit filed thereat, along with his application and therefore, the facts stated therein, had been *prima facie*, proved by the Respondent and in such circumstances and in any case, if, the Appellant endeavours to uncontrovert and/or refute and/or challenge any of the fact stated therein, the burden of proof will solely, lie on him to disprove it by proof on the contrary, as required by section 3 of the Evidence Ordinance to be read with sections 101 of 102 thereof.

However, it is significant to observe that the statement of showing cause had not in any manner, been supported by the Appellant by way of an affidavit filed thereat, along with his showing cause and hence, the facts stated in the application made to the Magistrate Court of Hambantota by the Respondent remain, unchallenged and/or uncontroverted and/or unrefuted by the Appellant.

In the circumstances, the Court is bound to act on the evidence so adduced by the Respondent in its affidavit which is unchallenged and/or uncontroverted and/or unrefuted by the Appellant for; contrary had not been proved by the Appellant in his mere statement of showing cause unsupported by an affidavit as observed by me elsewhere in this judgement.

Hence, the mere absence of a date or a month as to when the unauthorized construction was erected on the subject matter in the application, by itself, does not in any manner, vitiate the application made to the Magistrate Court of Hambantota by reason of the fact that the constructions in question had been proved by the Respondent to have been unauthorised constructions as enumerated above, which was not challenged and/or controverted and/or refuted by the Appellant by proof on the contrary.

In the circumstances, I would hold that the defence so raised by the Appellant to the application, is not in any manner, entitled to succeed both in fact and law and as such it ought to have been rejected as rightly, done firstly, by the learned Magistrate of Hambantota and secondly, by the learned High Court Judge of the

Province by affirming the same in the application in revision filed before him by the Appellant.

Hence, I would see no error in either or both of those two orders made by the learned Magistrate of Hambantota and the learned High Court Judge of the Province as well.

In the circumstances, the application in revision preferred to the High Court of the Province does not in any manner, show exceptional circumstances of any kind warranting it to exercise its extra-ordinary revisionary jurisdiction vested in it in revision of the MC order as rightly, held by the High Court Judge of the Province.

Hence, I would see no reason whatsoever, to interfere with either or both of those two orders made by the learned Magistrate of Hambantota and the learned High Court Judge of the Province as well.

I would thus, affirm both of those two orders made by the learned Magistrate of Hambantota and the learned High Court Judge of the Province as well.

In the result, I would dismiss the appeal with costs fixed at Rs. 50,000/-.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL